

**CITY OF SAN MATEO
ORDINANCE NO. 2026-01**

**AMENDING TITLE 27 OF THE SAN MATEO MUNICIPAL CODE, RELATED TO QUALIFIED OVERLAY 8 (Q8)
DISTRICTS TO ESTABLISH DEVELOPMENT STANDARDS FOR THE PROPOSED EARLY CHILDHOOD EDUCATION
CENTER IN THE Q8 OVERLAY AND AMENDING THE ZONING MAP OF THE CITY OF SAN MATEO TO REZONE THE
SITE AT 2033 LA SALLE DRIVE FROM R1-B (ONE FAMILY DWELLINGS) TO R1-B/Q8 (ONE FAMILY DWELLINGS,
QUALIFIED OVERLAY DISTRICT 8)**

WHEREAS, on June 17, 2019, the City Council established the Qualified Overlay District 8 (Q8) designation to provide for the development of land pursuant to standards and regulations that reflect the unique characteristics of educational facilities within residential districts; and

WHEREAS, the Carey School (hereinafter referred to as the “Applicant”) submitted Planning Application No. PA-2025-012 to the Planning Division for a Zoning Reclassification, Zoning Map Amendment, Site Plan and Architectural Review, Special Use Permit, and Site Development Planning Application to rezone the property located at 2033 La Salle Drive from R1-B to R1-B/Q8, and to establish and construct an early childhood education center at the same location (collectively referred to as the “Project”) in the City of San Mateo (“City”); and

WHEREAS, the City has previously applied Qualified Overlay designations to private educational facilities to address site-specific operational needs; and

WHEREAS, the General Plan 2040 Public Services Facilities Element has a goal to “foster the healthy development and education of children of all abilities, incomes, and backgrounds,” (Goal PSF-6) and a specific policy that encourages childcare centers in residential neighborhoods where they meet the City standards (Policy PSF 6.5); and

WHEREAS, educational facilities are permitted in the R1-B zoning district with a Special Use Permit; however, the single-family development standards do not address the site-specific operational needs of such facilities; and

WHEREAS, the Q8 Overlay addresses the unique characteristics of the educational facility, while limiting the uses on the site and protecting the surrounding uses by requiring a Special Use Permit for all uses within this overlay; and

WHEREAS, the zoning reclassification from R1-B to R1-B/Q8 and zoning code amendment would implement the General Plan by establishing site specific development standards for an educational facility that provides childcare services while protecting the surrounding users; and

WHEREAS, on December 9, 2025, the Planning Commission held a duly noticed public hearing, at which time the Commission received and considered written and oral evidence, and by a vote of unanimously (4-0), with one commissioner absent, to recommend that the City Council approve the Zoning Reclassification, Zoning Map Amendment, Site Plan and Architectural Review, Special Use Permit, and Site Development Planning Application, subject to the Findings for Approval and Conditions of Approval for Planning Application No. PA-2025-012; and

WHEREAS, the City Council has determined that the proposed rezoning and zoning code amendments are consistent with the City’s General Plan because the Q8 overlay zone authorizes deviations from the standards of the underlying R1-B zoning district, the Project includes a Special Use Permit that limits uses on the site and

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protects the surrounding neighborhood, and the Project otherwise conforms with the Residential Very Low land use designation of the site.

NOW, THEREFORE, THE COUNCIL OF THE CITY OF SAN MATEO ORDAINS AS FOLLOWS:

Section 1. Subsection (h) of Section 27.60.180 of the San Mateo Municipal Code is amended as follows:

(h) Q8 (Qualified Overlay District 8) - Limitations and Conditions. The following limitations and conditions shall pertain to the use of the property zoned Q8:

(1) Uses. All uses in this district shall require a special use permit, as set forth in Chapter 27.74 of the Zoning Code.

(2) Development. Future development in this district shall comply with the site plans and conditions of approval in all applicable Planning Applications. Development standards include allowance of awning up to nine (9) feet in height within the rear yard setback.

(3) Floor Area Ratio. This district shall have a maximum floor area ratio of 0.39.

(4) Parking. Off-site parking facilities shall not be located in excess of 1,000 feet from the project site. Uncovered parking may be allowed within the front and side setback areas.

(5) Signage. Signage on the site shall be allowed in accordance with Title 25 of the San Mateo Municipal Code.

Section 2. Environmental Determination. In accordance with California Environmental Quality Act (CEQA) Guidelines, the proposed zoning reclassification and the zoning map amendment are exempt from further environmental review pursuant to the “Common Sense” exemption (14 CCR Section 15061(b)(3)). The Common Sense exemption applies where it can be seen with certainty that there is no possibility the activity may have a significant effect on the environment. The proposed zoning reclassification and zoning overlay do not authorize physical development or ground disturbance on the site. Rather, the amendment provides additional allowances for potential future use of the site as an educational facility; it does not approve a specific development proposal or permit construction activities.

Pursuant to Municipal Code Section 27.60.180(h), all uses within the Q8 Overlay require approval of a Special Use Permit (SUP), and any development of the site requires Site Plan and Architectural Review (SPAR). Therefore, the proposed zoning reclassification and code amendment only change the site’s zoning designation and do not, in themselves, authorize any construction, demolition, or land disturbance that could result in physical environmental impacts.

Section 3. Legislative findings. At a duly noticed public hearing on January 12, 2026, the City Council of the City of San Mateo reviewed and considered the associated staff report and attachments thereto, the Categorical Exemption, together with comments received during the public review process, and hereby finds and determines as follows:

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1. **CONFORMANCE WITH GENERAL PLAN.** The City Council finds and determines that the proposed zoning code amendment and zoning reclassification from One Family Dwellings (R1-B) to One Family Dwellings with Qualified District Overlay 8 (R1-B/Q8) are in conformance with the Residential Very Low land use designation of the General Plan of the City of San Mateo. The amendment establishes development standards for an educational facility providing childcare services within a residential district, consistent with General Plan Land Use Policy 3.5 and Public Services Facilities Policy 6.5, which encourage childcare centers in residential neighborhoods where they meet City standards. While educational facilities are currently permitted in the R1-B zoning district with a Special Use Permit, no specific development standards exist to address the unique characteristics of such uses within residential areas. The Qualified Overlay designations have previously been applied to private educational facilities to address site-specific operational needs. Extending the Q8 Overlay and amending the Zoning Code would implement the General Plan policies by establishing tailored development standards that facilitate the development of educational facilities in appropriate residential settings.
2. **INTENT OF ZONING CODE.** The overlay district and rezoning conform to the purpose of Municipal Code Section 27.60.180 in that the rezoning provides standards for the use of land with unique site characteristics as a private educational facility.

Section 4. Zoning Map. The Zoning Map of the City of San Mateo is hereby amended to indicate as follows: the property generally known as APN: 039-040-080 as depicted in Exhibit A, attached hereto, shall be reclassified from the R1-B (One Family Dwellings) Zoning District to the R1-B/Q8 (One Family Dwellings , Qualified Overlay District 8) Zoning District and the Zoning Map shall be amended to reflect this reclassification.

Section 5. Severability. In the event any section, clause or provision of this Ordinance shall be determined invalid or unconstitutional, such section, clause or provision shall be deemed severable and all other sections or portions hereof shall remain in full force and effect. The City Council hereby declares that it would have passed this ordinance and each section, subsection, sentence, clause or phrase thereof, irrespective of the fact that any one or more section, subsection, sentence, clause or phrase be declared unconstitutional.

Section 6. Publication. This Ordinance shall be published in summary in a newspaper of general circulation, posted in the City Clerk's Office, and posted on the City's website, all in accord with Section 2.15 of the City Charter.

Section 7. Legislative History and Effective Date. This Ordinance was introduced on January 12, 2026, and adopted on January 26, 2026, and shall be effective 30 days after its adoption.

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The foregoing Ordinance was adopted by the City Council of the City of San Mateo, State of California by the following vote:

AYES: Council Members Loraine, Fernandez, Cwirko-Godycki, Diaz Nash, and Newsom

NOES: None

ABSENT: None

ATTEST:

The image shows a handwritten signature in blue ink, which appears to read "Martin McTaggart", next to the official seal of the City of San Mateo, California. The seal is circular with a landscape scene inside and the words "CITY OF SAN MATEO" and "CALIFORNIA" around the perimeter.

Martin McTaggart, City Clerk

The image shows a handwritten signature in blue ink that reads "Adam Loraine".

Adam Loraine, Mayor

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EXHIBIT A

**CITY OF SAN MATEO
ZONING MAP RECLASSIFICATION**

For PA-2025-012 2033 La Salle Drive, Zoning Reclassification

Amend the Zoning Map for the 2033 La Salle Drive site, APN: 039-040-080, from R1-B One Family Dwellings to R1-B/Q8 One Family Dwellings, Qualified Overlay District 8, to allow for a private educational facility. The Project site is circled below (see arrow) with the associated amended Zoning Map color.

